

9:30 a.m. CALENDAR

LINE

5

**IN RE THE ESTATE OF JENNIFER J.L. HUDSON-JONES, DECEASED
PR24-00051**

Petition to Compel Accounting by Surviving Spouse and for Order to Show Cause re:
Waste of Estate Assets Cal. Prob. Code §§ 10950, 850, 9611, 8800; CCP § 526a

PREGRANT ORDER

The court notes that there is no Proof of Service for the petition, which would usually cause the court to continue the matter to allow for service. However, the court finds that there is no legal basis for this petition. The surviving spouse was not the administrator and cannot be compelled to account. The surviving spouse is entitled to receive a 1/3rd portion of the remaining estate per Probate Code section 6401(c)(3) and is not required to account for that share. Additionally, the surviving spouse assigned their interest in the real property to the decedent's surviving children (including the moving party) and grandchildren. The court has signed the order for final distribution which reflects this distribution.

The court dismisses the petition. The court cautions the moving party that continuing to file unmeritorious motions and petitions may result in the moving party being deemed a vexatious litigant per Code of Civil Procedure section 391.

LINE

6

**IN RE THE ESTATE OF LINDA D. KELLY-CROSS, DECEASED
PR24-00109**

First and Final Account and Report of Administrator; Petition for Allowance of Statutory Administrator and Attorney's Fees; and Petition for Final Distribution

PREGRANT ORDER

This matter was continued from June 8, 2026. The court has reviewed the second supplement filed June 11, 2026, the third supplement filed July 7, 2026, and the Stipulation filed July 7, 2026 which resolved the issues.

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed, except that release of liability and discharge shall be ordered only upon the filing of the *Ex Parte Petition for Final Discharge and Order* once assets are distributed pursuant to Probate Code § 11753.
